



POLICE DEPARTMENT

July 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300555 (Incident Date: January 19, 2023) regarding Police Officer Spencer Wolf, Tax No. 968889 (DADS No. 2024-30194)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202300555, pertaining to Police Officer Spencer Wolf. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Wolf would be detrimental to the Police Department's disciplinary process.

In this case, CCRB substantiated three allegations against Police Officer Wolf; improper threat to arrest, discourtesy, and offensive language. The threat allegation, involves Police Officer Wolf's statement that the complainant may get arrested if his supervisor came to the location. The discourtesy and offensive language allegations encompass Police Officer Wolf wearing an unauthorized patch on his bullet resistant vest.

The Police Commissioner has determined that Police Officer Wolf's statements during the traffic stop, do not rise to the level of misconduct, as he never intended to arrest the motorist and made his statements in an attempt to de-escalate the situation. Police Officer Wolf stated he did not want the traffic stop to be prolonged, he intended to issue the motorist a summons and allow the motorist to go on his way.

In regards to the discourtesy and offensive remarks allegation, the Police Commissioner does not agree that Police Officer Wolf intended to be discourteous or offensive. The CCRB found the

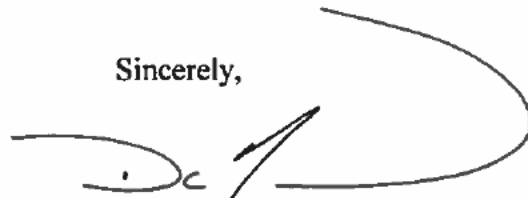
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patch to be both discourteous and offensive, as it had the phrase "Deus Vult," next to a red cross. The Police Commissioner agrees with Police Officer Wolf that it was not his intention to offend any member of the public by wearing said patch. Police Officer Wolf stated he was unaware of the different meanings and uses behind "Deus Vult," and that he knew the phrase to mean "God Willing," in Latin. Police Officer Wolf stated the patch does not have any historical significance, or any contemporary political significance to him. Nevertheless, the Police Commissioner has determined that Police Officer Wolf did violate Administrative Guide Procedure 305-01 (General Uniform Regulations).

As provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the substantiated allegations. Over the course of Police Officer Wolf's career he does not have any prior substantiated CCRB allegations against him and does not have any prior formal discipline. The Police Commissioner, however, acknowledges that Police Officer Wolf was in violation of department policy regarding uniform regulations and will therefore direct the issuance of a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days for violating Administrative Guide Procedure No. 305-1 (General Uniform Regulations).

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is stylized with a large, sweeping loop on the right side and a smaller loop on the left side.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

July 15, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202300555 (Incident Date: January 19, 2023) regarding Police Officer Spencer Wolf, Tax No. 968889 (DADS No. 2024-30194)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 11, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and impose no disciplinary action for the substantiated allegations in Specifications One (1) and Two (2) of the charges against Police Officer Spencer Wolf, but issue a Schedule “A” Command Discipline with a forfeiture of three (3) vacation days for Specification Three (3). Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that to pursue Charges and Specifications against Police Officer Wolf would be detrimental to the Police Department’s disciplinary process.” CCRB disagrees with this determination.

With regards to Specification 1, PO Wolf’s BWC footage shows him telling § 87(2)(b) that he will call his sergeant, but then tells § 87(2)(b) “If I get my sergeant over here, it’s gonna escalate.” PO Wolf is then seen returning to § 87(2)(b) vehicle with a summons. § 87(2)(b) initially refuses to accept the summons, disputes its validity, and repeats his request for PO Wolf’s sergeant while rolling up his window. PO Wolf tells § 87(2)(b) “I’m letting you know, if the sergeant’s getting here, you might end up getting arrested.” § 87(2)(b) then asks what he could get arrested for, and PO Wolf tells him that he is not complying with his lawful orders.

After watching his own BWC footage, PO Wolf stated in his interview that what he meant when he said, “You might end up getting arrested,” was that if § 87(2)(b) began acting disorderly when his supervisor arrived, he could be arrested for disorderly conduct. However, PO

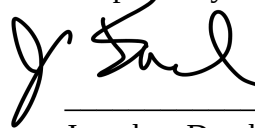
Wolf did not specify this to § 87(2)(b) and in his own testimony, PO Wolf admitted that § 87(2)(b) was not acting disorderly when he made the statement to him. Hence, PO Wolf lacked probable cause to arrest § 87(2)(b) for disorderly conduct or any other crime. The fact that § 87(2)(b) was simply expressing his dissatisfaction or incredulity at receiving a summons, while seated alone inside a motor vehicle pulled over at the side of the road, did not constitute a crime, regardless of whether a supervisor responded to the scene.¹ As such, PO Wolf's statement to § 87(2)(b) about possibly being arrested was improper.

As for Specification 2 and 3, PO Wolf admitted that he had no particular reason for wearing the patch, and that he had not received authorization from a supervisor to affix it to his uniform. Additionally, PO Wolf's association with a phrase and imagery coopted by racist far-right groups and utilized in xenophobic attacks on mosques is antithetical to the NYPD's mission to value human life, preserve peace, respect individuals, and render services with courtesy and civility, as outlined in PG 200-02. Moreover, as exhibited by the phrase's appearance in culture, politics, and media, this patch constitutes an association with organizations advocating hatred, oppression, and prejudice based on race and religion, and is thus in violation of AG 304-06.

Deputy Chief Marino stated that over the course of Police Officer Wolf's career, he does not have any prior substantiated CCRB allegations against him and does not have any prior formal discipline. However, the MOU does not state that no prior *formal* discipline is the criteria to be considered, but rather states the criteria to be simply no prior discipline.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Wolf in this matter.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

¹In *People v. Square*, 872 N.Y.S.2d 693 (2008), the Court held that the mere expression that one feels aggrieved by the police – even when uttered in a loud voice – cannot constitute a crime.



POLICE DEPARTMENT

July 16, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300555 (Incident Date: January 19, 2023) regarding Police Officer Spencer Wolf, Tax No. 968889 (DADS No. 2024-30194)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 15, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Spencer Wolf. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Wolf for the reasons expressed in my July 11, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the alleged misconduct. However, to address the violation of uniform regulations, the Police Commissioner directs the issuance a Schedule "A" Command Discipline with the forfeiture of ~~three~~ (3) vacation days.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office